

Court No. - 50

Case :- WRIT - C No. - 21056 of 2018

Petitioner :- Shiv Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- V.K.S. Somvanshi

Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi

Hon'ble Pankaj Mithal, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner. Sri Baleshwar Chaturvedi, learned counsel has appeared for the respondents No. 2 and 3.

The petitioner is aggrieved by the demand of electricity dues vide two notices of demand dated 31.10.2017 for a sum of Rs.1,03,330/- and Rs.26,500/- respectively.

The submission of learned counsel for the petitioner is that the petitioner was not involved in theft of electric energy as a final report has been submitted in the matter consequent to the FIR.

The assessment of electricity dues and the theft of electric energy are two separate things and in the absence of evidence if charge is not found to be worth prosecuting, it does not mean that he is not even liable to pay the electricity dues as per the assessment.

The notice of demand if incorrect or illegal can be challenged by the petitioner by means of appeal under Paragraph 6.8 of the Electricity Supply Code, 2005.

In view of the remedy of appeal available to the petitioner, we are not inclined to entertain this writ petition and the same is dismissed on the ground of alternative remedy.

Order Date :- 6.6.2018

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